

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL002319

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: ROSA MARIA AGUILAR ORTEGA	
and	
RESPONDENT: VICTORIO GARCIA TORRES	

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – SPOUSAL SUPPORT

RULING

Rosa Maria Aguilar Ortega (Wife) filed a request for order for a change in spousal support on April 16, 2026. Wife states that she suffered a heart attack on July 11, 2025, that affected her ability to work and caused her to incur substantial debts associated with her medical care.

Victorio Garcia Torres (Husband) filed a responsive declaration dated May 8, 2026, opposing the request for order, stating that Wife had failed to comply with the local rules to file an Income and Expense Declaration in support of her request for spousal support.

The Court will continue this matter and directs Wife to comply with Local Rule 7.13. This matter will be continued to _____.

As authorized by CRC Rule 5.125, the Court shall prepare the findings and order after hearing.

Parties must comply with Marin County Superior Court Local Rules, Rule 7.12(B), (C), which provide that if a party wants to present oral argument, the party must contact the Court at (415) 444-7046 and all opposing parties by 4:00 p.m. the court day preceding the scheduled hearing. Notice may be by telephone or in person to all other parties that argument is being requested (i.e., it is not necessary to speak with counsel or parties directly.) Unless the Court and all parties have been notified of a request to present oral argument, no oral argument will be permitted except by order of the Court. In the event no party requests oral argument in accordance with Rule 7.12(C), the tentative ruling shall become the order of the court.

IT IS ORDERED that evidentiary hearings shall be in-person in Department B. For routine appearances, the parties may access Department B for video conference via a link on the court website. Litigants in the virtual courtroom are required to leave the video screen on and wait for your case to be called.

FURTHER ORDERED that the parties are responsible for ensuring that they have a good connection and that they are available for the hearing. If the connection is inadequate, the Court may proceed with the hearing in the party's absence.

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF MARIN**

DATE: 6/11/26 TIME: 9:00 A.M. DEPT: B CASE NO: FL0002500

PRESIDING: HON. JAMES M. SCHURZ

REPORTER:

CLERK: A. URTON

PETITIONER: JAN NEUMARK

and

RESPONDENT: JENNIFER CHRISTINA
LYRA

NATURE OF PROCEEDINGS: REQUEST FOR ORDER – CHILD CUSTODY/VISITATION

RULING

Jan Neumark (Father) filed a Request for Order seeking (1) joint legal custody, (2) joint physical custody, and (3) a 50/50 visitation schedule. Specifically, Father seeks to have the children, Otto Neumark (DOB 08/01/2018) and Zoe Neumark (DOB 08/01/2018), on Mondays and Tuesdays, Mother to have the children Wednesday and Thursday, with weekends rotating Friday-Sunday. When either parent is traveling, the children shall be in the care of the other parent.

Jennifer Lyra (Mother) filed a responsive declaration opposing Father's request and requests one midweek after school/dinner visit only in addition to alternating weekends for Father. Mother requests that the parties maintain joint legal custody and that she continues to have sole custody of the children when traveling in Brazil. Mother further seeks additional clarification regarding travel. Finally, Mother urges the Court to deny Father's request for first refusal.

The parties were referred to Marin Family Court Services for mediation, counseling and recommendations. Both parents were interviewed, and FCS submitted its detailed report May 19, 2026.

Parents reached agreements with respect to several matters addressed in this Request for Order. First, the parties agreed (1) to joint legal custody, (2) for Father to take a parenting class, (3) for both parents to participate in coparenting counseling, and (4) that neither parent would change the children's schools without consent of the other parent.

Parents separated three years ago and are currently practicing a 5/2/2/5 schedule. Father wants to continue with the existing schedule. Mother seeks modifications as outlined above.